

Privacy Policy

Watch Learn **Drive.com** Ltd t/a SmartDriving – Driving Instructor Platform

*Effective date: 21 May 2026
Last updated: 21 May 2026

1. About this policy

This Privacy Policy explains how Watch Learn **Drive.com** Ltd, trading as SmartDriving ("**SmartDriving**", "**we**", "**us**", "**our**"), collects, uses, shares and protects personal data when you use the SmartDriving driving instructor platform and its associated web and mobile applications (the "**Platform**").

This policy applies to:

- driving instructors and their staff who use the Platform to run their business ("**Instructors**");
- learner drivers and pupils whose lesson, progress and payment data is held on the Platform ("**Pupils**");
- parents, guardians, next-of-kin and emergency contacts whose details are recorded against a Pupil's account ("**Contacts**");
- visitors who enquire about the Platform.

If you are looking for the privacy policy that covers our wider business activities (including our driving instructor training services and the smartdriving.co.uk marketing website), please see that policy at smartdriving.co.uk/privacy-policy.

2. Our contact details

Controller	Watch Learn Drive.com Ltd, trading as SmartDriving
Trading address	Scotswood House, Thornaby Place, Thornaby, TS17 6SB

Registered office	1 The Courtyard, Goldsmith Way, Eliot Business Park, Nuneaton, CV10 7RJ
Telephone	0800 09 88 321
Email	customer.care@smartdriving.co.uk
ICO registration	[REGISTRATION NUMBER TO BE INSERTED]

For data protection enquiries, please email customer.care@smartdriving.co.uk marked for the attention of "Data Protection".

3. Our role under UK data protection law

Under UK GDPR, SmartDriving acts in two different roles depending on the data and the user:

Where SmartDriving is the controller. We are the controller of personal data we hold about Instructors (our direct customers), Visitors who contact us, and Pupils for limited Platform-operation purposes such as account security, fraud prevention, statistical analysis and meeting our own legal obligations.

Where SmartDriving is the processor. Where an Instructor uses the Platform to manage their own Pupils, lessons and pupil communications, the Instructor is the controller of that Pupil data and SmartDriving processes that data on the Instructor's behalf. The terms of that processing are set out in our Terms of Service. Where you are a Pupil and wish to exercise data subject rights against your Instructor, please contact your Instructor in the first instance.

4. What personal data we collect

The data we hold depends on whether you are an Instructor, a Pupil, a Contact or a Visitor.

4.1 From Instructors

- **Identity:** full name, profile picture, role, account identifier, date of birth (where required).
- **Contact:** email, phone, postal address, postcode.

- **Account and authentication:** hashed password, two-factor authentication settings and recovery codes, "remember me" tokens, personal access tokens (API/mobile), password reset tokens, session records.
- **Location:** home postcode and geocoded coordinates, service-area postcode sectors.
- **Financial:** Stripe customer ID, Stripe Connect account ID, payout history, subscription and payment IDs, discount codes applied.
- **Tax and compliance:** National Insurance Number, Unique Taxpayer Reference, VAT Registration Number, Companies House number, business type and trading name, commencement and cessation dates, HMRC OAuth access and refresh tokens, fraud-prevention device data required by HMRC (screen resolution, window size, time zone, user agent, local and public IP addresses, device identifiers), quarterly and final income, expense, VAT and self-assessment figures, mileage logs, vehicle details.
- **Communications:** in-app messages, push notification history and tokens.
- **Marketing and consent:** terms acceptance flag, marketing opt-in flag.
- **Technical:** IP address, user agent string, device identifiers, activity logs.

4.2 From Pupils (entered by the Instructor or by the Pupil themselves)

- **Identity:** full name, profile picture, role, account identifier, date of birth.
- **Contact:** email, phone, postal address, postcode.
- **Account and authentication data,** as for Instructors.
- **Location:** pickup and drop-off addresses with coordinates.
- **Lesson, progress and assessment data:** lessons taken (date, time, duration, mileage), lesson summaries and instructor notes, reflective logs, progress scores by topic, mock theory test results, hazard perception attempts and per-hazard response times, checklist items, resource watch history.
- **Financial:** Stripe customer ID, payment IDs, order and package purchase history, lesson payments, receipts uploaded, booking and digital service fees paid.
- **Communications:** in-app messages, push notification history and tokens, email verification status.
- **Marketing and consent:** terms acceptance and marketing opt-in flags.
- **Technical data,** as for Instructors.

4.3 From Contacts (parents, guardians, emergency contacts)

- Name and relationship to the Pupil.

- Phone, email and postal address.
- Terms acceptance and marketing flags where applicable.
- "Owns account" flag, where the Contact controls the record on the Pupil's behalf.

4.4 From Visitors and enquirers

Information you provide in an enquiry form, typically: name, contact details, postcode, transmission preference, package interest, and progress through the enquiry steps.

4.5 Free-text fields and special category data

The Platform contains free-text fields such as lesson notes, reflective logs, bios and in-app messages.

We do not actively collect special category data (such as health or medical information), but users may enter such information into free-text fields.

Please do not enter health, medical, racial, religious, sexual orientation, biometric, genetic, political or trade union data into free-text fields unless it is strictly necessary, you have a lawful basis to do so, and any required consents are in place. If you need to record information of this kind for a legitimate purpose (for example, a learning need that affects how lessons are delivered), please discuss with your Instructor or contact us.

5. How we collect personal data

We collect data:

- directly from you when you register, complete forms, make payments or use the Platform;
- from your Instructor where you are a Pupil and your Instructor enters or imports your details;
- automatically when you use the Platform (session, device and activity data);
- from third-party services that you connect to your account, such as HMRC (via Making Tax Digital), Stripe and Google services where you authenticate through them.

6. Our lawful bases for processing

We rely on the following lawful bases under Article 6 of UK GDPR:

- **Contract** — to provide the Platform, set up accounts, process subscription payments, deliver lessons booked through the Platform, and provide customer support.
- **Legal obligation** — to comply with HMRC obligations relating to Making Tax Digital, DAC7 platform reporting, tax record-keeping, and to respond to lawful requests from regulators.
- **Legitimate interests** — to operate, secure and improve the Platform, prevent fraud, debug and analyse performance, defend legal claims, and where appropriate communicate with customers about service updates. We have carried out a balancing test for each of these uses; you can ask for the details by contacting us.
- **Consent** — for non-essential cookies and for direct marketing by email, SMS or push notification where required.

7. How we use your data

We use personal data to:

- a) operate the Platform and provide its features, including bookings, lesson records, progress tracking, payments, messaging, push notifications and tax filing;
- b) authenticate users, secure accounts and prevent fraud or abuse;
- c) process payments and instructor payouts through Stripe;
- d) generate suggested lesson topics and reflective prompts using an AI-assisted feature powered by AWS Bedrock (see section 8);
- e) display maps and calculate routes between pickup and drop-off points using Google Maps;
- f) send transactional emails such as receipts, password resets and lesson confirmations through Mandrill;
- g) submit Instructor tax and VAT returns to HMRC and meet our DAC7 platform-reporting obligations;
- h) comply with our legal, accounting and regulatory obligations;
- i) respond to queries, complaints and data subject requests;
- j) carry out internal analysis and improvements;
- k) send marketing communications where you have agreed to receive them.

8. AI features

The Platform uses **AWS Bedrock**, an AI service operated by Amazon Web Services (AWS), to generate suggested lesson topics and reflective prompts after a lesson has taken place. To produce these suggestions we pass a minimal amount of context (such as the most recent lesson notes and

progress scores) to Bedrock.

We use AWS Bedrock in a UK or EU AWS region. AWS does not use this data to train its underlying foundation models, and AWS acts as our processor for this feature.

The AI suggestions are advisory only; final decisions about lesson content always rest with the Instructor. The feature does not carry out automated decision-making that produces legal or similarly significant effects on you.

You can choose not to use the AI suggestion feature; doing so does not affect any other Platform function.

9. Who we share data with

We share personal data only where necessary and only with the categories of recipient listed below. We have data processing agreements in place with each of our processors.

Recipient	Purpose	Role	Location
Laravel Cloud	Hosting and database infrastructure for the Platform	Processor	United Kingdom
Mandrill (Mailchimp Transactional Email, operated by Intuit Inc.)	Sending transactional emails such as receipts, password resets and lesson confirmations	Processor	United States, with UK-approved transfer safeguards
Amazon Web Services (AWS Bedrock)	AI-assisted lesson topic suggestions	Processor	UK or EU AWS region

Google LLC (Google Maps)	Map display and postcode geocoding	Processor for some features; separate controller for analytics within Google's products	Global
Stripe Payments Europe Ltd	Subscription billing, payment processing, Stripe Connect payouts to Instructors, fraud prevention	Separate controller for payment data	Ireland/UK with global processing
HM Revenue & Customs (HMRC)	Making Tax Digital submissions, DAC7 platform-operator reporting, statutory tax reporting	Separate controller	United Kingdom
Driver and Vehicle Standards Agency (DVSA)	Where applicable, for verification of instructor credentials	Separate controller	United Kingdom
Our professional advisers (accountants, lawyers, insurers, auditors)	Where necessary for advice, audit, claims or compliance	Separate controllers	United Kingdom
Law enforcement and regulators	Where required by law or to defend our legal rights	Separate controllers	Primarily United Kingdom

We **do not** sell personal data. We **do not** share personal data with advertising networks from the Platform.

The list above is current as at the effective date of this policy. We may add or change sub-processors

from time to time; the current list is always available here.

10. DAC7 platform reporting

SmartDriving is a "reporting platform operator" under the UK regulations implementing the OECD Model Reporting Rules for Digital Platforms (commonly known as **DAC7**). This means we are legally required to collect and verify identification information about Instructors who earn money through the Platform, and to report that information together with their earnings annually to HMRC.

The information we report includes:

- Instructor identifying information (name, primary address, date of birth, National Insurance Number, Unique Taxpayer Reference and VAT Registration Number where held, jurisdiction(s) of residence);
- bank account information used for payouts;
- totals of fees, payouts and platform earnings per quarter.

Our lawful basis for this processing is **legal obligation**. We cannot delete this data on request while the reporting obligation applies. Before each annual submission to HMRC we will provide affected Instructors with a copy of the information we report about them.

11. Making Tax Digital and HMRC fraud-prevention data

Where Instructors choose to use the Platform to file VAT or income tax returns to HMRC under Making Tax Digital (MTD), we transmit submitted figures to HMRC together with technical "fraud prevention" headers required by law. These include the originating device's screen resolution and window size, time zone, user agent, public and local IP addresses, and device identifiers. HMRC uses this data to detect fraudulent submissions; we are legally required to provide it.

Our lawful basis for this processing is **legal obligation** (the Delivery of Tax Information through Software (Ancillary Metadata) Regulations 2019 and related HMRC requirements).

12. International transfers

We host the Platform and its database in the United Kingdom. Some of the third parties listed above

may process data outside the UK. Where personal data is transferred outside the UK, we rely on one or more of the following safeguards:

- UK adequacy regulations where the destination country has been recognised as providing an adequate level of protection;
- the International Data Transfer Agreement (IDTA), or the UK Addendum to the EU Standard Contractual Clauses;
- other safeguards approved under UK GDPR.

You can ask for a copy of the safeguards by contacting customer.care@smartdriving.co.uk.

13. How long we keep your data

We keep personal data only for as long as we need to for the purposes set out in this policy. Our standard retention periods are:

Category	Retention
Account data	Active account + up to 7 years after closure
Lesson and progress data	Active relationship + up to 7 years after last lesson
Payment and tax records	7 years from the end of the relevant tax year
HMRC submissions and audit logs	7 years from date of submission
DAC7 reporting data	As required by law (currently 5 years from the end of the reportable period)
Marketing data	Until consent is withdrawn, or 24 months of inactivity, whichever is sooner
Enquiry data	Up to 24 months from date of enquiry
Security and access logs	Up to 12 months
Backups	Purged on a rolling basis, up to 35 days after deletion from primary systems

After the relevant retention period, data is deleted or irreversibly anonymised.

14. Children's privacy

Pupils on the Platform may be aged 16 or 17 (for example, 17-year-olds learning to drive a car, or 16-year-olds learning to ride a moped). We treat Pupils under 18 as children for data protection purposes.

We rely on the Instructor (and where applicable the Pupil's parent or guardian) to obtain appropriate consent before entering a child's details on the Platform. Where a Pupil is under 18 we collect parent or guardian contact details where available and we apply additional safeguards to children's accounts, including:

- restricting non-essential marketing to under-18s;
- limiting profiling and automated decision-making affecting children;
- ensuring privacy information is presented clearly.

We will not knowingly process personal data of any child below the minimum age permitted to take driving instruction in the United Kingdom for the relevant category of vehicle.

15. Security

We take the security of personal data seriously. Our measures include:

- all data hosted within the United Kingdom on Laravel Cloud's UK infrastructure;
- HTTPS encryption for all data in transit;
- encryption at rest provided by Laravel Cloud's database service;
- hashed passwords using industry-standard algorithms;
- two-factor authentication available for all accounts;
- role-based access controls within the Platform;
- logging of administrative and security-significant actions;
- regular software updates and security patching;
- restricted staff access on a need-to-know basis;
- written contracts and data-processing terms with all of our processors;
- card payment data is never stored by SmartDriving; payment cards are handled directly by Stripe

under PCI DSS-compliant infrastructure.

No system can be guaranteed perfectly secure. If we become aware of a personal data breach that is likely to result in a risk to your rights and freedoms, we will notify the Information Commissioner's Office within 72 hours of becoming aware and, where appropriate, we will notify you.

16. Your rights

Under UK GDPR you have the following rights:

- **Access** — to ask for a copy of the personal data we hold about you;
- **Rectification** — to ask us to correct inaccurate or incomplete data;
- **Erasure** — to ask us to delete your data in certain circumstances;
- **Restriction** — to ask us to limit the processing of your data;
- **Portability** — to ask for your data in a portable format;
- **Object** — to object to processing based on legitimate interests, and to object at any time to direct marketing;
- **Withdraw consent** — where processing is based on consent, to withdraw that consent at any time;
- **Not be subject to solely automated decision-making** that produces legal or similarly significant effects;
- **Complain** to the Information Commissioner's Office.

To exercise any of these rights please email customer.care@smartdriving.co.uk. We aim to respond within one month and will not charge a fee for most requests.

Please note that some rights are not absolute. Where we are legally required to keep certain data (such as HMRC record-keeping, DAC7 reporting or anti-money-laundering rules), we may not be able to delete it on request. We will always explain the reason if we cannot fully comply.

If you are a Pupil and your request relates to lesson, progress, financial or communications data held on the Platform by your Instructor, please contact your Instructor first, as the Instructor is the controller of that data. We will support the Instructor in responding to your request.

17. Complaints

If you are unhappy with how we have handled your personal data, please contact us first using the details in section 2 so that we have the chance to put it right.

You also have the right to complain to the Information Commissioner's Office (the UK supervisory authority for data protection):

Information Commissioner's Office

Wycliffe House, Water Lane, Wilmslow, Cheshire, SK9 5AF

Telephone: 0303 123 1113

Website: ico.org.uk

18. Changes to this policy

We may update this policy from time to time. The current version is always available on our website with the effective date shown above. Significant changes will be notified to active users by email or in-app notice.